THE TRUSTEES FOR THE TIME BEING OF THE
APOSTOLIC FAITH MISSION IN ZIMBABWE
versus
THE APOSTOLIC FAITH MISSION OF ZIMBABWE
and
AMON NYIKA CHINYEMBA
and
TAPIWA MUTUNHIRA
and
ELISHA CHIKWINDI
and
JAIROS MUZENDA
and
DENNIS MUTUNGI
and
MARTIN FATI

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE: 28 January & 2 January 2026

Application for summary judgment

Mr Homera, for the applicant
Mr Gumiro, for the respondents

MAMBARA J:
[1] This is an application for summary judgment made in terms of r 30(1) of the High Court Rules, 2021. The applicant seeks final relief on the basis that the respondents have failed to disclose a bona fide defence and have entered appearance to defend merely for purposes of delay, in circumstances where the issues raised have long been settled by binding court decisions.

[2] The dispute concerns ownership and control of immovable property belonging to the Apostolic Faith Mission in Zimbabwe ("AFM in Zimbabwe"). The respondents resist the claim on the footing that the applicant allegedly lacks locus standi, contending that the applicant is distinct from AFM in Zimbabwe and that a notarial trust deed exists appointing different trustees.

Background

[3] It is common cause that the parties were at one time one institution, namely AFM in Zimbabwe, before the emergence of a splinter grouping styling itself AFM of Zimbabwe. That schism has been the subject of extensive litigation in this court and the Supreme Court.

[4] The courts have, in a series of judgments, *AFM and Others* v *Chiangwa*, HH586/19; *Chiangwa and Others* v *AFM and Others*, SC67/21 and AFM in Zimbabwe v *AFM of Zimbabwe* HH269/22 conclusively determined the identity of AFM in Zimbabwe, its governance structures, and the ownership of its properties. These decisions are extant, binding, and have not been overturned.

[5] The property forming the subject matter of these proceedings is registered in the name of The Trustees Of The Time Being Of The Apostolic Faith In Zimbabwe. The applicant asserts that it is a creation of AFM in Zimbabwe and that, in law and fact, the two are intrinsically intertwined and incapable of separation.

Applicant's case

[6] Mr Homera, for the applicant, submitted that the respondents' plea raises no triable issue. He argued that the Constitution of AFM in Zimbabwe governs the affairs of the church and its property. Reliance was placed on clause 13.13 of the Constitution, which provides for the formation of a trust to hold church property.

[7] The Constitution names trustees and further provides that certain office bearers become trustees by virtue of their office. On that basis, the deponent to the founding affidavit averred that he is a trustee ex officio and was duly authorised to institute these proceedings.

[8] It was submitted that the respondents' reliance on an unspecified notarial deed is vague and evasive. No trustees are named. No deed is attached. No explanation is offered as to how such a deed could override both the Constitution and binding court judgments.

[9] Counsel submitted that the defence is whimsical, contrived, and devoid of substance. The court was referred to *Jena* v *Nechipote* 1986 (1) ZLR 29 (S) on the test for summary judgment.

[10] Costs on the higher scale were sought on the basis that the respondents have persistently litigated over issues already settled by the courts and have lost on every occasion, yet continue to burden the applicant with needless litigation.

Respondents' case

[11] Mr Gumiro, for the respondents, argued that the applicant before the court is not AFM in Zimbabwe but a trust, and that the Constitution relied upon is not the constitution of that trust.

[12] It was further contended that the litigation was not authorised by the trustees and that the deponent improperly relies on the Constitution to clothe himself with the status of trustee.

[13] The respondents also asserted that both parties are affiliates of an international organisation and that, for that reason, the applicant cannot claim ownership of the property to the exclusion of the respondent.

[14] On this basis, it was argued that the matter raises triable issues and should proceed to trial.

The law on summary judgment

[15] The principles governing summary judgment are well settled. The remedy is extraordinary but appropriate where a defendant has no *bona fide* defence and has entered appearance merely to delay the inevitable.

[16] In *Jena* v *Nechipote* (supra), the Supreme Court held that a defendant must disclose fully the nature and grounds of the defence and the material facts relied upon therefor. Bald allegations and legal conclusions do not suffice.

[17] The same approach has been adopted consistently in this jurisdiction and in comparable jurisdictions. The court must be satisfied that there is a genuine issue to be tried, not a speculative or contrived dispute.

Analysis

[18] The respondents' defence collapses upon scrutiny.

[19] First, the attempt to separate the applicant from AFM in Zimbabwe is artificial and untenable. This court and the Supreme Court have pronounced, in clear terms, on who constitutes AFM in Zimbabwe and on the ownership of its properties.

[20] Those judgments are binding. They cannot be circumvented by semantic manoeuvres or by relabelling entities. Litigation is not a game of perpetual reinvention. There must be finality.

[21] Second, the reliance on an alleged notarial deed is fatally defective. No deed is produced. No trustees are named. No facts are pleaded showing how such a deed displaces the Constitution of AFM in Zimbabwe or prior court rulings.

[22] A party resisting summary judgment must place material facts before the court with sufficient clarity to enable a determination of the existence of a *bona fide* defence. The respondents have failed to do so.

[23] Third, the argument that both parties are affiliates of an international body is legally irrelevant. Affiliation does not determine ownership of property. Ownership is determined by title, governance instruments, and judicial pronouncement — all of which favour the applicant.

[24] Fourth, the challenge to authority is without merit. The Constitution expressly provides for trusteeship and for office bearers who become trustees by virtue of their office. That governance framework has already been judicially recognised.

[25] The respondents' insistence that the matter should go to trial is not borne out by the pleadings. There is no factual dispute requiring oral evidence. The issues have been distilled, crystallised, and conclusively settled by the courts.

[26] To allow this matter to proceed to trial would be an abdication of judicial responsibility and a licence for abuse of court process.

Comparative authority

[27] South African courts have consistently held that summary judgment is appropriate where a defence is illusory. In *Maharaj* v *Barclays National Bank Ltd* 1976 (1) SA 418 (A), it was emphasised that a defendant must disclose a defence which is both bona fide and good in law.

[28] In *Beukes* v *Krugersdorp Transitional Local Council* 1996 (3) SA 467 (W), the court warned against permitting defendants to frustrate plaintiffs through bare and unsubstantiated defences.

[29] The same principle is recognised across the Commonwealth. Courts must guard against the misuse of procedural rights to perpetuate disputes already resolved.

Costs

[30] This matter exemplifies persistent and obstinate litigation in defiance of settled law. The respondents have been before the courts repeatedly on these issues and have been unsuccessful on each occasion.

[31] The continued resistance to the applicant's claim is vexatious and warrants censure. Costs on the higher scale are justified to mark the court's displeasure and to indemnify the applicant.

Disposition

[32] In the result, the application must succeed.

ORDER

1. Summary judgment is hereby granted in favour of the applicant.
2. The respondents' plea and opposition are dismissed.
3. It is declared that the property forming the subject matter of these proceedings, stand number 12921 Salisbury Township lands measuring 3 045 square metres held under deed of transfer 4631/2003 also known as number 12921 Chaminuka Street, Mbare, Harare. belongs to the applicant as part of AFM in Zimbabwe.
4. The respondents and all those claiming through them are barred from asserting any right, title, or interest inconsistent with the applicant's ownership.
5. The respondents shall pay costs on the attorney-and-client scale.

MAMBARA J…….

Zvimba Law Chambers, legal practitioners for the applicant
Moyo Chikono & Gumiro, legal practitioners for the respondents